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The Honorable Thomas Keane, M.D.,
Assistant Secretary for Technology Policy, National Coordinator for Health Information Technology, ASTP/ONC
U.S. Centers for Medicare & Medicaid Services, Department of Health and Human Services
Attention: HHS Health Sector AI RFI
330 C Street SW
Washington, DC 20201

Sent electronically via: regulations.gov
RE: Request for Information; Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care (HHS-ONC-2026-0001)

Dear Assistant Secretary Keane:

McKesson Corporation ("McKesson") appreciates the opportunity to provide comments in response to the Request for Information (RFI) Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care HHS-ONC-2026-0001 including the Office of the Deputy Secretary and the Assistant Secretary for Technology Policy (ASTP)/Office of the National Coordinator for Health Information Technology (ONC) (collectively referred to here as "HHS").

About McKesson

McKesson is a global leader in healthcare supply chain management solutions, community pharmacy, community oncology and specialty care, and healthcare information technology solutions. McKesson partners with pharmaceutical manufacturers, providers, pharmacies, payers, federal, state, and local governments, and other organizations in healthcare to advance health outcomes for *all*.

As a diversified healthcare leader, our solutions help patients access life-changing therapies, create a real difference for patients with cancer, and equip pharmacies, health systems and clinics with technologies to operate more effectively. Our provider and pharmacy partners operate in communities that include some of the most underserved urban and rural areas of the U.S. As we work across our partners and customers, McKesson strives to ensure that its views on improving healthcare prioritize what's best for the patient.

General Comments

Artificial intelligence (AI) has the potential to meaningfully improve clinical care by enhancing decision support, reducing administrative burden, and enabling timely, coordinated, and patient-centered care across the healthcare system. At the same time, realizing these benefits at scale requires a policy environment that supports responsible innovation, protects patients, and reflects how care is delivered across diverse clinical settings. As a healthcare services company operating at the center of data exchange, care delivery, and technology enablement, McKesson offers the following comments to highlight key barriers to AI adoption and to recommend actions HHS can take to foster safe, effective, and equitable use of AI in clinical care. Our comments focus on the need for aligned data governance, coordinated cross-agency guidance, and payment policies that appropriately recognize AI-enabled value in real-world clinical workflows.

Fragmented State Laws Undermine Innovation and Limit Patient Benefit

Current federal and state data protection regimes apply unevenly across the healthcare ecosystem depending on how data is received, by whom, and under what legal classification. As a result, the same clinical data may be subject to materially different privacy, security, and use restrictions based solely on the pathway through which it flows rather than on the sensitivity of the data itself or the interests of the patient.

For example, identical datasets may receive robust HIPAA protections when held by a covered entity but be subject to different (and in some cases less comprehensive) requirements when held by organizations not governed by HIPAA or governed by overlapping and inconsistent state laws. In other instances, initial recipients of data, such as payers or healthcare clearinghouses, may retain disproportionate control over downstream data use regardless of where the data subsequently resides within the healthcare ecosystem. These inconsistencies can result in patient data being governed in ways that are misaligned with patient expectations and, in some cases, not in the patient's best interests.

This fragmented regulatory landscape creates uncertainty, increases compliance complexity, and undermines patient trust without meaningfully improving privacy or security outcomes. While providers generally have access to the clinical data they need for care, the fragmented privacy landscape complicates cross-ecosystem collaboration and data reuse constraining experimentation and ideation needed to develop and scale effective digital health solutions and AI-enabled care. Advanced analytics and AI tools depend on timely, representative, and interoperable data to support clinical decision making, monitor performance, detect bias, and continuously improve care delivery. Legal and regulatory fragmentation that restricts lawful data access or creates inconsistent governance across care settings can degrade data quality, introduce gaps or bias, and ultimately limit the effectiveness, performance and safety of AI-enabled solutions.

For companies like McKesson that operate at the center of healthcare data movement, these challenges are especially pronounced. Responsible AI adoption depends not only on strong safeguards, but also on the ability to securely and lawfully access high quality clinical data across the continuum of care. Aligning legal and regulatory data protection frameworks to be more consistent and interoperable would strengthen privacy protections while enabling the responsible sharing and reuse of data across the healthcare ecosystem supporting innovation, improving outcomes, reducing burden, and building public trust in AI.

Issue Consolidated, Cross-Agency AI Guidance Aligned to Real-World Clinical Workflows Agency

HHS should issue consolidated, cross-agency guidance on AI in clinical care that reflects how AI is developed, deployed, and used across healthcare workflows. Current regulatory expectations are fragmented across FDA, CMS, ONC, and OCR, creating uncertainty particularly for AI that supports clinical care indirectly or operates across multiple settings. In addition, not all AI used in clinical care presents the same level of patient risk. Consolidated guidance would enable a tiered, risk-based oversight framework that appropriately differentiates among:

- Assistive or administrative AI

- Clinical decision support tools
- Diagnostic or treatment directing AI

Clear differentiation would reduce overregulation of low-risk use cases while ensuring appropriate safeguards for high-risk applications.

Modernize CMS Payment Policies to Recognize AI-Enabled Value

CMS payment policy plays an important role in shaping whether and how AI technologies are integrated into clinical care. As AI tools continue to mature, today's fee-for-service reimbursement structures may not fully reflect the types of value these technologies can support, including:

- Improvements in clinical and operational efficiency
- Reductions in administrative burden for clinicians
- Earlier intervention, prevention, and more consistent delivery of care

Many AI-enabled tools generate value through time savings, streamlined workflows, and avoided downstream utilization. As payment models continue to evolve, there may be opportunities to better align reimbursement with these emerging sources of value, helping support thoughtful adoption while maintaining program integrity.

Conclusion

In closing, McKesson strongly supports HHS's efforts to accelerate the responsible adoption of AI in clinical care and appreciates the opportunity to provide input on this important initiative. Realizing the full potential of AI to improve patient outcomes, reduce administrative burden, and strengthen the healthcare system will require a policy framework that is consistent, patient-centric, and grounded in real-world clinical workflows. We urge HHS to address fragmented data governance, issue coordinated cross-agency guidance that reflects a risk-based approach to AI oversight and modernize CMS payment policies to recognize the value created by AI-enabled efficiency and prevention. Taken together, these steps would promote innovation while preserving appropriate safeguards, support provider adoption, and build public trust in AI-enabled care. McKesson stands ready to continue partnering with HHS, CMS, ASTP, and ONC to help advance a regulatory and payment environment that enables safe, effective, and equitable use of AI in clinical care. If you have questions or need further information, please contact Fauzea Hussain, Vice President of Public Policy, at Fauzea.Hussain@McKesson.com.

Sincerely,

RE Buckley

Rich Buckley

Senior Vice President, Corporate Affairs

McKesson Corporation